

UNITED STATES PATENT AND TRADEMARK OFFICE (USPTO)

IMPORTANT NOTICE REGARDING YOUR **U.S. TRADEMARK APPLICATION**

USPTO OFFICE ACTION (OFFICIAL LETTER) HAS ISSUED
ON **4/7/2016** FOR U.S. APPLICATION SERIAL NO. 86829570

Your trademark application has been reviewed. The trademark examining attorney assigned by the USPTO to your application has written an official letter to which you must respond. Please follow these steps:

(1) READ THE LETTER by clicking on this [link](#) or going to [www.uspto.gov](#), entering your U.S. application serial number, and clicking on “Documents.”

The Office action may not be immediately viewable, to allow for necessary system updates of the application, but will be available within 24 hours of this e-mail notification.

(2) RESPOND WITHIN 6 MONTHS (*or sooner if specified in the Office action*), calculated from **4/7/2016**, using the Trademark Electronic Application System (TEAS) response form located at [www.uspto.gov/patents/teas](#).

Do NOT hit “Reply” to this e-mail notification, or otherwise e-mail your response because the USPTO does NOT accept e-mails as responses to Office actions.

(3) **QUESTIONS** about the contents of the Office action itself should be directed to the trademark examining attorney who reviewed your application, identified below.

/John M. Gartner/

Trademark Examining Attorney

Law Office 102

(informal correspondence)

OFFICE ACTION

STRICT DEADLINE TO RESPOND TO THIS LETTER

TO AVOID ABANDONMENT OF APPLICANT'S TRADEMARK APPLICATION, THE USPTO MUST RECEIVE APPLICANT'S COMPLETE RESPONSE TO THIS LETTER **WITHIN 6 MONTHS** OF THE ISSUE/MAILING DATE BELOW.

ISSUE/MAILING DATE: 4/7/2016

TEAS PLUS OR TEAS REDUCED FEE (TEAS RF) APPLICANTS – TO MAINTAIN LOWER FEE, ADDITIONAL REQUIREMENTS MUST BE MET, INCLUDING SUBMITTING DOCUMENTS ONLINE: Applicants who filed their application online using the lower-fee TEAS Plus or TEAS RF application form must (1) file certain documents online using TEAS, including responses to Office actions (see TMEP §§819.02(b), 820.02(b) for a complete list of these documents); (2) maintain a valid e-mail correspondence address; and (3) agree to receive correspondence from the USPTO by e-mail throughout the prosecution of the application. See 37 C.F.R. §§2.22(b), 2.23(b); TMEP §§819, 820. TEAS Plus or TEAS RF applicants who do not meet these requirements must submit an additional processing fee of \$50 per international class of goods and/or services. 37 C.F.R. §§2.6(a)(1)(v), 2.22(c), 2.23(c); TMEP §§819.04, 820.04. However, in

certain situations, TEAS Plus or TEAS RF applicants may respond to an Office action by authorizing an examiner's amendment by telephone without incurring this additional fee.

The referenced application has been reviewed by the assigned trademark examining attorney. Applicant must respond timely and completely to the issues below. 15 U.S.C. §1062(b); 37 C.F.R. §§2.62(a), 2.65(a); TMEP §§711, 718.03.

NO CONFLICTING MARKS

The trademark examining attorney has searched the Office's database of registered and pending marks and has found no conflicting marks that would bar registration under Trademark Act Section 2(d). TMEP §704.02; *see* 15 U.S.C. §1052(d).

REFUSAL—MARK IS MERELY DESCRIPTIVE OF THE SERVICES

Registration is refused because the applied-for mark merely describes a feature or characteristic of applicant's services. Trademark Act Section 2(e)(1), 15 U.S.C. §1052(e)(1); *see* TMEP §§1209.01(b), 1209.03 *et seq.*

A mark is merely descriptive if it describes an ingredient, quality, characteristic, function, feature, purpose, or use of an applicant's goods or services. TMEP §1209.01(b); *see, e.g., In re TriVita, Inc.*, 783 F.3d 872, 874, 114 USPQ2d 1574, 1575 (Fed. Cir. 2015) (quoting *In re Oppedahl & Larson LLP*, 373 F.3d 1171, 1173, 71 USPQ2d 1370, 1371 (Fed. Cir. 2004)); *In re Steelbuilding.com*, 415 F.3d 1293, 1297, 75 USPQ2d 1420, 1421 (Fed. Cir. 2005) (citing *Estate of P.D. Beckwith, Inc. v. Comm'r of Patents*, 252 U.S. 538, 543 (1920)).

In this case, applicant has applied to register the mark DISRUPTIVE LEARNING TECHNOLOGY for services identified as "communication services, providing accelerated and experiential based action learning, combined with practical mindfulness and self-awareness, to facilitate change." The definition of DISRUPTIVE is, "radically reconfiguring a particular field of business, as by implementing new technologies or a more competitive business model." The definition of LEARN is, "to gain knowledge of or skill in through study, instruction, or experience." The definition of TECHNOLOGY is, "The application of science, especially to industrial or commercial objectives." Please see the attached definitions from the online American Heritage® Dictionary of the English Language, Fifth Edition. Used together as DISRUPTIVE LEARNING TECHNOLOGY, the mark immediately describes the fact that applicant's services employ technology to radically reconfigure the model of teaching and learning.

SUPPLEMENTAL REGISTER

The applied-for mark has been refused registration on the Principal Register. Applicant may respond to the refusal by submitting evidence and arguments in support of registration and/or by amending the application to seek registration on the Supplemental Register. See 15 U.S.C. §1091; 37 C.F.R. §§2.47, 2.75(a); TMEP §§801.02(b), 816. Amending to the Supplemental Register does not preclude applicant from submitting evidence and arguments against the refusal. TMEP §816.04.

1. IDENTIFICATION AND CLASSIFICATION OF SERVICES

The identification of services is indefinite and must be clarified. The meaning of “communication services” is not clear; this could be a telecommunications service, counseling on interpersonal communication or some other service. The nature of the “experiential based action learning” services is unclear. If applicant is providing educational services, the subject matter of the services must be specified, as well as the manner in which the services are provided (classes, seminars, workshops, etc.). Please note that educational services are Class 41 services. See TMEP §1402.01. Applicant may adopt the following identification, if accurate:

“Education services, namely, providing accelerated and experiential based action learning, combined with practical mindfulness and self-awareness, in the nature of [indicate form of educational activity, e.g., classes, seminars, workshops] in the field of [indicate subject matter or field of educational activity as it relates to facilitating change],” in International Class 41.

“Communication services, namely, [specify the service using the common commercial name of the service],” in International Class 00 (class to be determined by the nature of the services).

An applicant may only amend an identification to clarify or limit the services, but not to add to or broaden the scope of the services. 37 C.F.R. §2.71(a); see TMEP §§1402.06 *et seq.*, 1402.07.

For assistance with identifying and classifying goods and services in trademark applications, please see the USPTO’s online searchable *U.S. Acceptable Identification of Goods and Services Manual* at <http://tess2.uspto.gov/netahtml/tidm.html>. See TMEP §1402.04.

2. MULTIPLE CLASS APPLICATION REQUIREMENTS

The application identifies services that could be classified in more than one international class; therefore, applicant must satisfy all the requirements below for each international class based on use in commerce under Section 1(a):

- (1) ~~For the purposes of this section, the international class number~~ in consecutive numerical order, starting with the lowest numbered class. [The USPTO uses "classes" to identify categories of types of goods or services, and assigns a number to each category to organize the goods and/or services that can bear a federally registered trademark or service mark. Specifically, the USPTO has adopted the International Nice Classification System. There are currently 45 classes of goods and services, with classes 1 through 34 for goods, and classes 35 through 45 for services. For example, class 1 is for "chemicals," class 3 is for "cosmetics and cleaning preparations," and class 45 is for "personal and legal" services.]
- (2) ~~Classes 1 through 34 for goods and classes 35 through 45 for services~~ not covered by the fee already paid (view the USPTO's current fee schedule at [www.uspto.gov/fees](#)). The application identifies services that could be classified in at least two classes; however, applicant submitted a fee sufficient for only one class. Applicant must either submit the filing fees for the classes not covered by the submitted fees or restrict the application to the number of classes covered by the fees already paid.
- (3) ~~For each international class, the applicant must submit a fee sufficient to cover the filing fee for that class~~ anywhere and in commerce **for each international class.**

- (4) The current specimen is not acceptable for any international class (please see specimen refusal, below).

Examples of specimens for services include advertising and marketing materials, brochures, photographs of business signage and billboards, and website printouts that show the mark used in the actual sale, rendering, or advertising of the services.

- (5) that “The specimen was in use in commerce on or in connection with the services listed in the application at least as early as the filing date of the application.”

See 15 U.S.C. §§1051(a), 1112; 37 C.F.R. §§ 2.32(a)(6)-(7), 2.34(a)(1), 2.86(a); TMEP §§904, 1403.01, 1403.02(c).

For an overview of the requirements for a Section 1(a) multiple-class application and how to satisfy the requirements online using the Trademark Electronic Application System (TEAS) form, please go to

3. SPECIMEN REFUSAL

Registration is refused because the specimen does not show the applied-for mark in use in commerce in connection with any of the services specified in the application. Trademark Act Sections 1 and 45, 15 U.S.C. §§1051, 1127; 37 C.F.R. §§2.34(a)(1)(iv), 2.56(a); *In re Graystone Consulting Assocs., Inc.*, 115 USPQ2d 2035, 2037-38 (TTAB 2015); *In re Chengdu AOBI Info. Tech. Co.*, 111 USPQ2d 2080, 2081-82 (TTAB 2011); TMEP §§904, 904.07(a), 1301.04(d), (g)(i).

Specifically, the application identifies the services as having something to do with communication and learning, although the exact nature of services is unclear. The specimen uses the mark to describe equally unclear services, although the services described in the specimen appear to be more along the lines of personal development services. In any case, both the specimen and the identification of services are so vague that the examining attorney is unable to say that the specimen does, in fact, use the mark in connection with the services.

An application based on Trademark Act Section 1(a) must include a specimen showing the applied-for mark in use in commerce for each international class of goods and/or services identified in the application or amendment to allege use. 15 U.S.C. §1051(a)(1); 37 C.F.R. §§2.34(a)(1)(iv), 2.56(a); TMEP §§904, 904.07(a).

Examples of specimens for services include advertising and marketing materials, brochures, photographs of business signage and billboards, and webpages that show the mark used in the actual sale, rendering, or advertising of the services. See TMEP §1301.04(a), (h)(iv)(C).

Applicant may respond to this refusal by satisfying one of the following for each applicable international class:

- (1) Submit a different specimen (a verified) that (a) was in actual use in commerce at least as early as the filing date of the application and (b) shows the mark in actual use in commerce for the services identified in the application.
- (2) Amend the filing basis to , for which no specimen is required. This option will later necessitate additional fees and filing requirements such as providing a specimen.

For an overview of *both* response options referenced above and instructions on how to satisfy either option online using the Trademark Electronic Application System (TEAS) form, please go to [this link](#).

GENERAL RESPONSE GUIDELINES

For this application to proceed toward registration, applicant must explicitly address each refusal and requirement raised in this Office action. If the action includes a refusal, applicant may provide arguments and evidence as to why the refusal should be withdrawn and the mark should register. Applicant may also have other options for responding to a refusal and should consider such options carefully. To respond to requirements and certain refusal response options, applicant should set forth in writing the required changes or statements.

If applicant does not respond to this Office action within six months of the issue/ mailing date, or responds by expressly abandoning the application, the application process will end, the trademark will fail to register, and the application fee will not be refunded. *See* 15 U.S.C. §1062(b); 37 C.F.R. §§2.65(a), 2.68(a), 2.209(a); TMEP §§405.04, 718.01, 718.02. Where the application has been abandoned for failure to respond to an Office action, applicant's only option would be to file a timely petition to revive the application, which, if granted, would allow the application to return to active status. *See* 37 C.F.R. §2.66; TMEP §1714. There is a \$100 fee for such petitions. *See* 37 C.F.R. §§2.6, 2.66(b)(1).

QUESTIONS

If applicant has questions regarding this Office action, please telephone or e-mail the assigned trademark examining attorney. All relevant e-mail communications will be placed in the official application record; however, an e-mail communication will not be accepted as a response to this Office action and will not extend the deadline for filing a proper response. *See* 37 C.F.R. §§2.62(c), 2.191; TMEP §§304.01-.02, 709.04-.05. Further, although the trademark examining attorney may provide additional explanation pertaining to the refusals or requirements in this Office action, the trademark examining attorney may not provide legal advice or statements about applicant's rights. *See* TMEP §§705.02, 709.06.

/John M. Gartner/

Trademark Examining Attorney

Law Office 102

(571) 272-9255

John.Gartner@uspto.gov (informal correspondence)

TO RESPOND TO THIS LETTER: Go to www.uspto.gov/teas. Please wait 48-72 hours from the issue/mailling date before using the Trademark Electronic Application System (TEAS), to allow for necessary system updates of the application. For *technical* assistance with online forms, e-mail TEAS@USPTO.GOV. For questions about the Office action itself, please contact the assigned trademark examining attorney. **E-mail communications will not be accepted as responses to Office actions; therefore, do not respond to this Office action by e-mail.**

All informal e-mail communications relevant to this application will be placed in the official application record.

WHO MUST SIGN THE RESPONSE: It must be personally signed by an individual applicant or someone with legal authority to bind an applicant (i.e., a corporate officer, a general partner, all joint applicants). If an applicant is represented by an attorney, the attorney must sign the response.

PERIODICALLY CHECK THE STATUS OF THE APPLICATION: To ensure that applicant does not miss crucial deadlines or official notices, check the status of the application every three to four months using the Trademark Status and Document Retrieval (TSDR) system at www.uspto.gov/tsdr. Please keep a copy of the TSDR status screen. If the status shows no change for more than six months, contact the Trademark Assistance Center by e-mail at TAC@USPTO.GOV or call 1-800-786-9199. For more information on checking status, see www.uspto.gov/patents/faq/faq_status.html.

TO UPDATE CORRESPONDENCE/E-MAIL ADDRESS: Use the TEAS form at

Docs: Office Action Outgoing

To: Radical
Choices, LLC

(

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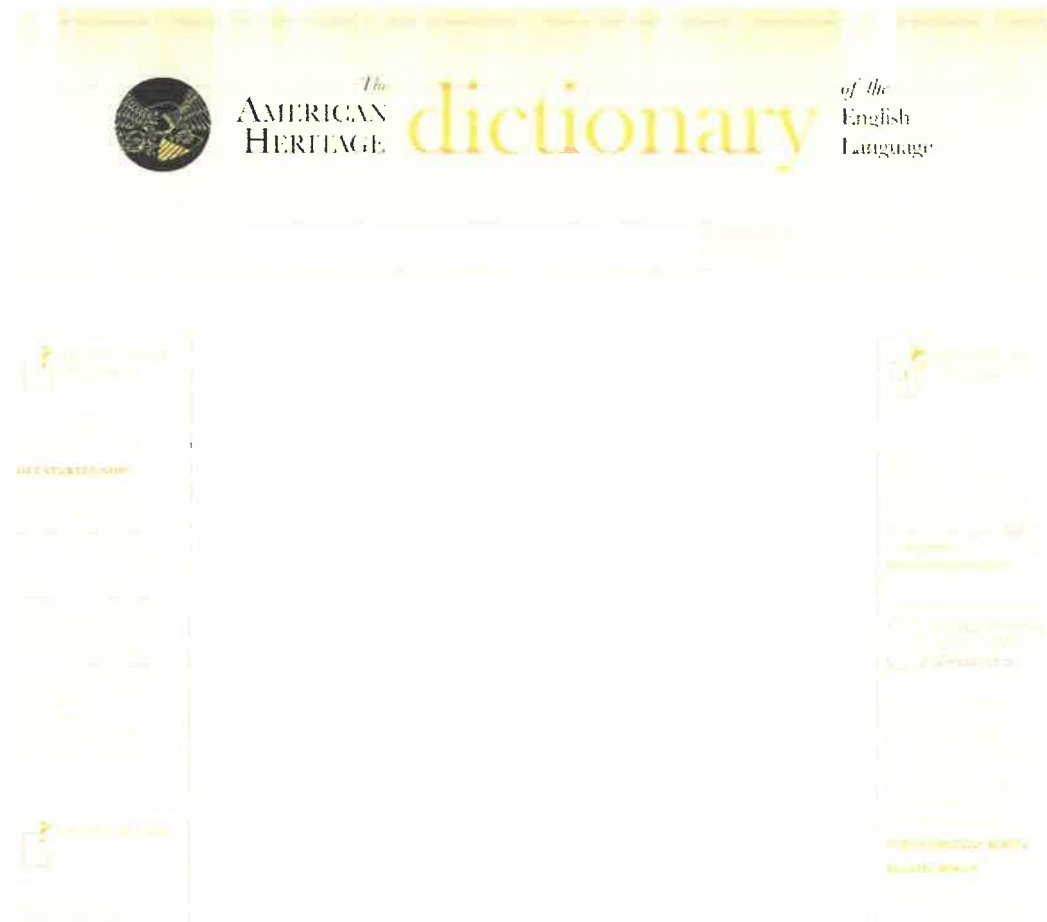
Subject: U.S. TRADEMARK APPLICATION NO. 86829570 - DISRUPTIVE
LEARNING TECHNOLOGY - N/A

Sent: 4/7/2016 10:05:01 AM

Sent As: ECOM102@USPTO.GOV

Attachments

:



American Heritage Dictionary:

Dis-rupt-tive [adj]

1. Relating to, causing, or produced by disruption
2. Radically reconfiguring a particular field of business, as by implementing new technologies or a more competitive business model: potential high returns from investing in disruptive companies

— enough more it would be a disaster.
— the only way to ensure the success of the project is
to ensure that the project is not disrupted.
— the only way to ensure the success of the project is
to ensure that the project is not disrupted.





American Heritage Dictionary:
Tech-no-lo-gy [noun]

1.
 - a. The application of science, especially to industrial or commercial objectives
 - b. The scientific method and material used to achieve a commercial or industrial objective
2. Electronic or digital products and systems considered as a group: a store specializing in office technology
3. Anthropology The body of knowledge to a society that is of use in fashioning implements, practicing manual arts and skills and extracting or collecting materials

Most Recent posts

George Orwell's Nineteen Eighty-Four
George Orwell's Nineteen Eighty-Four is a
dystopian novel that explores the
consequences of totalitarianism.

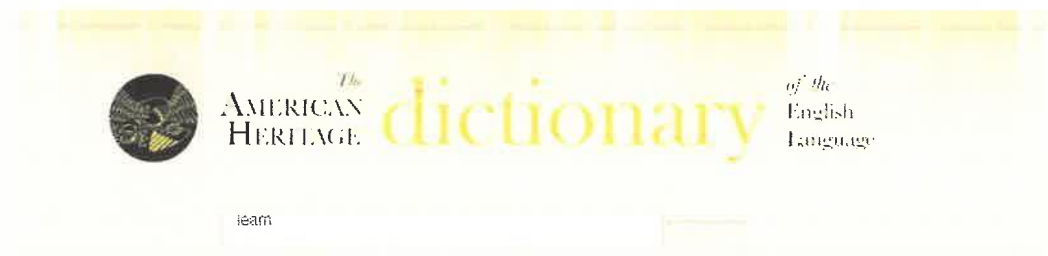
George Orwell's Nineteen Eighty-Four



George Orwell's Nineteen Eighty-Four

George Orwell's Nineteen Eighty-Four

George Orwell's Nineteen Eighty-Four



American Heritage Dictionary:

Learn [verb, also learnt, learning, learns

1.
 - a. To gain knowledge or skill in through study, instruction or experience: learned how to sail, learned the new computer program, learned how to speak Hindi
 - b. To become aware or informed of, find out: learned the truth about him, learned that it was best not to argue
2. To fix in the mind or memory, memorize: leaned the speech in a few hours
3. Nonstandard To cause to acquire knowledge, to teach
4. Obsolete To give information to

v. intr. To gain knowledge, information, comprehension or skills: learns

quickly, learned about computers, learned of the job through friends

<https://www.abdictionary.com/word/search.html?q=learn> 04/07/2016 09:54:33 AM



Docs: XSearch Search Summary

**** User:jgartner *****

#	Total Marks	Dead Marks	Live Viewed Docs	Live Viewed Images	Status/ Search Duration	Search
01	3	0	3	3	0:01	"Radical Choices"[on]
02	147	N/A	0	0	0:01	*d{v}{ "sz"}r{v}pt*[bi,ti] and live[ld] not 1
03	4221	N/A	0	0	0:01	*learn*[bi,ti] and live[ld] not 1
04	263	N/A	0	0	0:01	*teh*[bi,ti] and live[ld] not 1
05	23052	N/A	0	0	0:01	*tech*[bi,ti] and live[ld] not 1
06	4	0	4	4	0:01	2 and (3 5)
07	42	0	42	39	0:01	3 and 5

Session started 3/28/2016 4:08:40 PM

Session finished 3/28/2016 4:10:13 PM

Total search duration 0 minutes 7 seconds

Session duration 1 minutes 33 seconds

Default NEAR limit=1ADJ limit=1

Sent to TIGRS as Serial Number: 86829570

Doc: TEAS RF New Application

Trademark/Service Mark Application, Principal Register

Serial Number: 86829570

Filing Date: 11/23/2015

The table below presents the data as entered.

Input Field	Entered
SERIAL NUMBER	86829570
MARK INFORMATION	
• MARK	DISRUPTIVE LEARNING TECHNOLOGY
STANDARD CHARACTERS	YES
USPTO-GENERATED IMAGE	YES
LITERAL ELEMENT	Disruptive Learning Technology
MARK STATEMENT	The mark consists of standard characters, without claim to any particular font, style, size, or color.
REGISTER	Principal
APPLICANT INFORMATION	
• OWNER OF MARK	Radical Choices, LLC
INTERNAL ADDRESS	#7
• STREET	1530 Lee Hill Drive
• CITY	Boulder
• STATE (Required for U.S. applicants)	Colorado
• COUNTRY	United States
• ZIP/POSTAL CODE	80304

(Required for U.S. applicants)

3034150056

ali@radicalchoicesllc.com

Yes

LEGAL ENTITY INFORMATION

limited liability company

Colorado

GOODS AND/OR SERVICES AND BASIS INFORMATION

038

IDENTIFICATION

SECTION 1(a)

At least as early as 05/00/2015

At least as early as 09/08/2015

**SPECIMEN
FILE NAME(S)**

digital images of marketing materials used
in commerce

ADDITIONAL STATEMENTS SECTION

PRIOR REGISTRATION: Applicant claims ownership of 86524464, Radical Choices.

CORRESPONDENCE INFORMATION

Radical Choices, LLC

INTERNAL ADDRESS	#7
STREET	1530 Lee Hill Drive
CITY	Boulder
STATE	Colorado
COUNTRY	United States
ZIP/POSTAL CODE	80304
PHONE	3034150056
EMAIL ADDRESS	ali@radicalchoicesllc.com
AUTHORIZED TO COMMUNICATE VIA EMAIL	Yes
FEE INFORMATION	
APPLICATION FILING OPTION	TEAS RF
NUMBER OF CLASSES	1
FEE PER CLASS	275
TOTAL FEE DUE	275
TOTAL FEE PAID	275
SIGNATURE INFORMATION	
SIGNATURE	/Ali Boaldin/
SIGNATORY'S NAME	Ali Boaldin
SIGNATORY'S POSITION	Manager
SIGNATORY'S PHONE NUMBER	3034150056
DATE SIGNED	11/23/2015

Trademark/Service Mark Application, Principal Register

Serial Number: 86829570

Filing Date: 11/23/2015

To the Commissioner for Trademarks:

MARK: Disruptive Learning Technology (Standard Characters, see)

The literal element of the mark consists of Disruptive Learning Technology.

The mark consists of standard characters, without claim to any particular font, style, size, or color.

The applicant, Radical Choices, LLC, a limited liability company legally organized under the laws of Colorado, having an address of

#7,

1530 Lee Hill Drive

Boulder, Colorado 80304

United States

requests registration of the trademark/service mark identified above in the United States Patent and Trademark Office on the Principal Register established by the Act of July 5, 1946 (15 U.S.C. Section 1051 et seq.), as amended, for the following:

International Class 038: Communication services, Providing accelerated and experiential based action learning, combined with practical mindfulness and self-awareness, to facilitate change

In International Class 038, the mark was first used by the applicant or the applicant's related company or licensee or predecessor in interest at least as early as 05/00/2015, and first used in commerce at least as early as 09/08/2015, and is now in use in such commerce. The applicant is submitting one(or more) specimen(s) showing the mark as used in commerce on or in connection with any item in the class of listed goods/services, consisting of a(n) digital images of marketing materials used in commerce.

Miscellaneous Statement

PRIOR REGISTRATION: Applicant claims ownership of 86524464, Radical Choices.

The applicant's current Correspondence Information:

Radical Choices, LLC

#7

1530 Lee Hill Drive

Boulder, Colorado 80304

3034150056(phone)

ali@radicalchoicesllc.com (authorized)

E-mail Authorization: I authorize the USPTO to send e-mail correspondence concerning the application to the applicant or applicant's attorney at the e-mail address provided above. I understand that a valid e-mail address must be maintained and that the applicant or the applicant's attorney must file the relevant subsequent application-related submissions via the Trademark Electronic Application System (TEAS). Failure to do so will result in an additional processing fee of \$50 per international class of goods/services.

A fee payment in the amount of \$275 has been submitted with the application, representing payment for 1 class(es).

Declaration

The signatory believes that: if the applicant is filing the application under 15 U.S.C. § 1051(a), the applicant is the owner of the trademark/service mark sought to be registered; the applicant is using the mark in commerce on or in connection with the goods/services in the application; the specimen(s) shows the mark as used on or in connection with the goods/services in the application; and/or if the applicant filed an application under 15 U.S.C. § 1051(b), § 1126(d), and/or § 1126(e), the applicant is entitled to use the mark in commerce; the applicant has a bona fide intention, and is entitled, to use the mark in commerce on or in connection with the goods/services in the application. The signatory believes that to the best of the signatory's knowledge and belief, no other persons, except, if applicable, concurrent users, have the right to use the mark in commerce, either in the identical form or in such near resemblance as to be likely, when used on or in connection with the goods/services of such other persons, to cause confusion or mistake, or to deceive. The signatory being warned that willful false statements and the like are punishable by fine or imprisonment, or both, under 18 U.S.C. § 1001, and that such willful false statements and the like may jeopardize the validity of the application or any registration resulting therefrom, declares that all statements made of his/her own knowledge are true and all statements made on information and belief are believed to be true.

Declaration Signature

Signature: /Ali Boaldin/ Date: 11/23/2015

Signatory's Name: Ali Boaldin

Signatory's Position: Manager

RAM Sale Number: 86829570

RAM Accounting Date: 11/24/2015

Serial Number: 86829570

Internet Transmission Date: Mon Nov 23 18:14:18 EST 2015

TEAS Stamp: USPTO/BAS-XX.XXX.XXX.XXX-201511231814188

95174-86829570-5409190a6af2f8d279a5b19b7

ab30168fe8d8629fa3d1514fa515128fe6ecbeb6
e-DA-5916-20151123160241904468

Doc: Specimen

Life Solutions Through Disruptive Learning Technology™



Radical Choices: A wellness organization that generates sustainable behavior change and self-awareness using our Disruptive Learning Technology™.

*Humans have unimaginable
potential for light,
freedom, joy, intimacy
and creativity.*

Our DLT embraces resistance to change. Once resistance is experienced without judgment, it immediately and naturally transforms. It becomes the exact power needed to fuel future success. We have integrated the best practices of psychology, sociology, brain science and common sense to create the programs and services needed for sustainable change now.